Shelby County Tennessee

Willie F. Brooks Jr

Shelby County Register

As evidenced by the instrument number shown below, this document has been recorded as a permanent record in the archives of the Office of the Shelby County Register.

23001426

01/06/2023 - 08:58:10 AM

6 PGS	
BRANDON 2531096 - 23001426	
VALUE	0.00
MORTGAGE TAX	0.00
TRANSFER TAX	0.00
RECORDING FEE	30.00
DP FEE	2.00
REGISTER'S FEE	0.00
TOTAL AMOUNT	32.00

WILLIE F. BROOKS JR
REGISTER OF DEEDS SHELBY COUNTY TENNESSEE

1075 Mullins Station, Suite W165 ~ Memphis, Tennessee 38134 (901) 222-8100
Website: www.register.shelby.tn.us Email: register@shelbycountytn.gov

12-15-2022
This Instrument prepared by and return to: Gary L. Jewel, Attorney At Law, 5342 Estate Office Dr., Suite 3, Memphis, TN 38119

NOTES AND DEEDS OF TRUST
MODIFICATION AND EXTENSION AGREEMENT

MAXIMUM PRINCIPAL INDEBTEDNESS FOR TENNESSEE RECORDING TAX PURPOSES IS EXACT SAME COLLATERAL OF PRIOR DEBT. DOES NOT INCREASE PRINCIPAL DEBT Recording taxes have been paid at Instrument Numbers: KM 5212, KM2973, 02039557, 02051156, 03234331, 03234332, 04028934, and 04028935.

THIS NOTES AND DEEDS OF TRUST MODIFICATION AND EXTENSION AGREEMENT is entered in this AS OF the 31st day of August, 2022, by and between John A. Dobbins, hereinafter referred to as Borrower and Doris A. Fredrick ("Lender").

The Trustee is Gary L. Jewel, whose address is 5342 Estate Office Dr., Suite 3, Memphis, TN. 38119.

WITNESSETH:

WHEREAS, on the 1st day of September, 2000, Borrowers executed a Promissory Note and Deed of Trust in the principle sum of Forty Thousand Eight Hundred Seventy One Dollars and No/100 ($40,871.00) payable to HARRY A. FREDRICK and wife, DORIS A. FREDRICK, secured by a Deed of Trust more particularly described and recorded under Instrument Number **KM5212** in the Register's Office of Shelby County, Tennessee. (3439-3441 Dungreen)

WHEREAS, on the 1st day of September, 2000, Borrowers executed a Promissory Note and Deed of Trust in the principal amount of Fifty-Six Thousand Dollars and No/100 ($56,000.00)payable to the order of HARRY A. FREDRICK and wife, DORIS A. FREDRICK, secured by a Deed of Trust more particularly described and recorded under Instrument Number **KM2973** in the Register's Office of Shelby County, Tennessee. (3437-3439 Eastport)

WHEREAS, on the 22nd day of February, 2002, Borrowers executed a Promissory Note and Deed of Trust in the principal sum of Fifty Three Thousand Dollars and No/100 ($53,000.00) payable to the order of HARRY A. FREDRICK and wife DORIS A. FREDRICK, secured by a Deed of Trust more particularly described and recorded under Instrument Number **02039557** in the Register's Office of Shelby County, Tennessee. (3377-79 Woodhollow)

WHEREAS, on the 22nd day of February, 2002, Borrowers executed a Promissory Note and Deed of Trust in the principal sum of Fifty Thousand Nine Hundred Thirty Five Dollars and No/100 ($50,935.00) payable to the order of HARRY A. FREDRICK and wife, DORIS A. FREDRICK, secured by a Deed of Trust more particularly described and recorded under Instrument Number **02051156** in the Registers Office of Shelby County, Tennessee. (3803-3805 Jasmine)

WHEREAS, on the 20th day of November, 2003, Borrowers executed a Promissory Note and Deed of Trust in the principle sum of One Hundred Thirty Five Thousand Dollars and No/100 ($135,000.00)payable to HARRY A. FREDRICK and wife, DORIS A. FREDRICK, secured by a Deed of Trust more particularly described and recorded under Instrument Number 03234331 in the Register's Office of Shelby County, Tennessee. **(Parcel II (Lot 6) only)**. (1349-1351 Garden)

WHEREAS, on the 20th day of November, 2003, Borrowers executed a Promissory Note and Deed of Trust in the principle sum of One Hundred Thirty Five Thousand Dollars and No/100 ($135,000.00)payable to HARRY A. FREDRICK and wife, DORIS A. FREDRICK, secured by a Deed of Trust more particularly described and recorded under Instrument Number 03234332 in the Register's Office of Shelby County, Tennessee. **(Parcel II (Lot 6) only)**. (1349-1351 Garden)

WHEREAS, on the 13th day of February, 2004, Borrowers executed a Promissory Note and Deed of Trust in the principle sum of One Hundred Eighty Three Thousand One Hundred Fifty Dollars and No/100 ($183,150.00) payable to HARRY A. FREDRICK and wife, DORIS A. FREDRICK, secured by a Deed of Trust more particularly described and recorded under Instrument Number **04028934** in the Register's Office of Shelby County, Tennessee. (2993 Clearbrook / 5528 Hyacinth)

WHEREAS, on the 13th day of February, 2004, Borrowers executed a Promissory Note and Deed of Trust in the principle sum of Fifteen Thousand Three Hundred Fifty Dollars and No/100 ($15,350.00) payable to HARRY A. FREDRICK and wife, DORIS A. FREDRICK, secured by a Deed of Trust more particularly described and recorded under Instrument Number **04028935** in the Register's Office of Shelby County, Tennessee. (2993 Clearbrook / 5528 Hyacinth)

WHEREAS, the parties by means of this Instrument desire to change the terms of the Notes and extend the maturity date of the Notes and extend the lien of the Deeds of Trust, without, however, releasing or affecting the priority of the Deeds of Trust;

NOW, THEREFORE, FOR MUTUAL CONSIDERATIONS, the receipt and sufficient of which are hereby acknowledged, the parties agree as follows:

1. Acknowledgement of Debt: It is acknowledged that under the notes there exist a total outstanding principal balance of **$208,989.53**.

2. Modification of Terms of Note: The terms, covenants, conditions and lien of the Trust Deeds and of the Notes and of all instruments evidencing or securing the indebtedness, will remain in full force and effect, and will in no manner be affected except as expressly modified hereby. It is further agreed that the terms and provision of the note are hereby modified as follows: The interest rate on the notes shall be modified to provide for a new interest rate of **Four percent (4%)**.

3. Modification of Deed of Trust: The deeds of trust are hereby modified and amended to reflect the change in the Notes as above stated and to extend the lien thereof in accordance with the modification herein set forth. All references in the Deeds of Trust to the Notes or the indebtedness secured thereby shall henceforth be deemed to refer to the Notes as herein modified. THE MAXIMUM PRINCIPAL INDEBTEDNESS FOR TENNESSEE RECORDING TAX PURPOSE IS $0.

4. Reaffirmation of Obligations: All Terms and Provisions of the Notes and the Deeds of Trust not herein before specifically modified or amended shall remain in full force and effect and are hereby reaffirmed by Borrowers. The execution and delivery of this Agreement does not constitute payment, cancellation, satisfaction, discharge, release or extinguishment of the principal indebtedness evidenced by the Notes.

5. Borrower shall pay the costs to prepare and record this Agreement.

6. The Lender agrees to make a notation on the original Notes of the modification set forth in this Agreement.

7. The lien of the Trust Deeds are hereby so extended that the lien of the Trust Deeds will not be barred by any applicable statue of limitations for a period of ten (10) years from the date of maturity of the Notes, as herein extended, unless the principal and accrued interest of the Notes are paid in full.

8. The Borrower promises to pay the Note as set forth hereinabove; to pay any and all present and future indebtedness secured by the Trust Deeds; to keep and perform all the covenants, terms and conditions contained in the Trust Deeds and the Promissory Notes (as modified herein) and/or in all instruments now or hereafter evidencing or securing the indebtedness evidenced hereby or secured by the Trust Deeds, in default of any of which the holder of the Notes, secured by the Trust Deeds, in default of any of which the holder of the Notes, at its options, may declare the indebtedness evidenced thereby accelerated and matured for all purposes, and may proceed to foreclose the Trust Deeds or to exercise, at its option, any right or privilege granted in the Trust Deeds or in the Notes, or by law.

The indebtedness and liabilities secured hereby include, but are not limited to a Promissory Note dated of even date herewith payable to Lender in the amount of **$208,989.53** payable with interest as stated in that Promissory Note, and all extensions, modifications and renewals of said note. The note is payable in full **168** months from date, unless extended.

For this purpose, Borrower irrevocably grants and conveys to Trustee, in Trust, with power of sale, the following described real property located in Shelby County, Tennessee:

Lot 5, Section F, Second Addition to Knightwood Subdivision as shown on plat of record in Plat Book 44, Page 66 in the Register's Office of Shelby County, Tennessee, to which Plat reference is hereby made for a more particular description of said property.

Being the same property conveyed to Linda Dobbins by Warranty Deed recorded at Instrument Number **KM5211** in the Register's Office of Shelby County, Tennessee.

Property commonly known as: 3439-3441 Dungreen St., Memphis, TN 38115
Parcel Number: 073041K00003

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Lot 69, Section B, First Addition to KNIGHTWAY Subdivision as shown on Plat of record in Plat Book 36, Page 27, in the Register's Office of SHELBY County, TENNESSEE, to which Plat reference is hereby made for a more particular description of said property.

Being the same property conveyed to Linda Dobbins by Warranty Deed recorded at Instrument Number **KM2972** in the Register's Office of SHELBY County, Tennessee.

Property commonly known as: 3437-3439 Eastport Cove, Memphis, TN 38118
Parcel Number: 073041G00049

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Lot 14, Section C, First Addition to KNIGHTWOOD Subdivision as shown on Plat of record in Plat Book 43, Page 57, in the Register's Office of SHELBY County, TENNESSEE, to which Plat reference is hereby made for a more particular description of said property.

Being the same property conveyed to Linda Dobbins by Warranty Deed recorded at Instrument Number **02039556** in the Register's Office of Shelby County, Tennessee.

Property commonly known as: 3377-3379 Woodhollow Drive, Memphis, TN 38118.
Parcel Number: 073041 H00036

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Lot 382, Resubdivision of Section C, First Addition to HERITAGE COLONY Subdivision as shown on Plat of record in Plat Book 41,Page 59, in the Register's Office of SHELBY County, TENNESSEE, to which Plat reference is hereby made for a more particular description of said property.

Being the same property conveyed to Linda Dobbins and Camille E. Dobbins by Quit Claim recorded at Instrument Number 06109694 and the same property conveyed to Linda Dobbins by Warranty Deed recorded at Instrument Number **02051155**, all in the Register's Office of Shelby County, Tennessee.

Property commonly known as: 3803-3805 Jasmine Drive, Memphis, TN 38115
Parcel Number: 093417F00004

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Lot 6, MACGAR Subdivision as shown on Plat of record in Plat Book 61 , Page 61 , in the Register's Office of SHELBY County, TENNESSEE, to which Plat reference is hereby made for a more particular description of said property.

Being part of the same property conveyed to John A Dobbins and Linda Dobbins by Warranty Deed recorded at Instrument Number **03234330** in the Register's Office of Shelby County, Tennessee.

Property commonly known as: 1349-1351 Garden Road, Memphis, TN 38134.
Parcel Number: 08901400160

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Lot 528, Section C, PARKWAY VILLAGE Subdivision as shown on Plat of record in Plat Book 23, Page 25, in the Register's Office of SHELBY County, TENNESSEE, to which Plat reference is hereby made for a more particular description of said property.

Being part of the same property conveyed to John A. Dobbins and wife Linda Dobbins by Warranty Deed recorded at Instrument Number **04028933** in the Register's Office of Shelby County, Tennessee.

Property commonly known as: 2993 Clearbrook Street, Memphis, TN 38118.
Parcel Number: 07400900004

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Lot 556, Section D, First Addition to HERITAGE COLONY Subdivision as shown on Plat of record in Plat Book 42, Page 58, in the Register's Office of SHELBY County, TENNESSEE, to which Plat reference is hereby made for a more particular description of said property.

Being part of the same property conveyed to John A. Dobbins and wife Linda Dobbins by Warranty Deed recorded at Instrument Number **04028933** in the Register's Office of Shelby County, Tennessee.

Property commonly known as: 5528 Hyacinth Cove, Memphis, TN 38115.
Parcel Number: 093417G00001

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together with all improvements now or hereafter erected on the property. All replacements and additions shall also be covered by this Modification of Deeds of Trust. All of the foregoing is referred to in this Deeds of Trust Modification and Extension Agreement as the "Property").

By Signing Below, Borrower and Lenders accept and agree to the terms and covenants contained in this Deeds of Trust Modification and Extension Agreement as of August 31, 2022.

IN WITNESS WHEREOF, Borrower has executed this Notes and Deeds of Trust Modification and Extension Agreement.

JOHN A. DOBBINS

STATE OF TENNESSEE

COUNTY OF SHELBY

Personally appeared before me, a Notary Public in and for the aforesaid County and State, John Dobbins, with whom I am personally acquainted, and who upon oath acknowledged that he executed the within instrument for the purposes therein contained.

Witness my hand, at office, this 20 day of December, 2022.

Ona Collier Mitchell
Notary Public

My Commission Expires: April 29, 2026

ONA COLLIER MITCHELL
STATE OF TENNESSEE NOTARY PUBLIC
SHELBY COUNTY

My Commission Expires Apr. 29, 2026

IN WITNESS WHEREOF, Lender has executed this Notes and Deeds of Trust Modification and Extension Agreement.

Doris A. Fredrick

DORIS A. FREDRICK

STATE OF TENNESSEE
COUNTY OF SHELBY

Personally appeared before me, a Notary Public in and for the aforesaid County and State, Doris Fredrick with whom I am personally acquainted, and who upon oath acknowledged that she executed the within instrument for the purposes therein contained.

Witness my hand, at office, this 21 day of December, 2022.

Stephanie Lannom

Notary Public

My Commission Expires: 5-8-2023

STEPHANIE LANNOM
STATE OF TENNESSEE NOTARY PUBLIC
COUNTY OF SHELBY

PROPERTY ADDRESSES:

3439-3441 Dungreen St., Memphis, TN 38115 Parcel Number: 073041K00003

3437-3439 Eastport Cv., Memphis, TN 38118 Parcel Number. 073041G00049

3377-3379 Woodhollow Dr., Memphis, TN. 38118 Parcel Number: 073041H00036

3803-3805 Jasmine Dr., Memphis, TN 38115 Parcel Number: 093417F00004

1349-1351 Garden Rd., Memphis, TN 38134 Parcel Number: 08901400160

2993 Clearbrook St., Memphis, TN 38118 Parcel Number: 07400900004

5528 Hyacinth Cv., Memphis, TN 38115 Parcel Number: 093417G00001